

PHILLIPS v. RADER-COLEMAN, et al.

22CV46116

**PLAINTIFFS' MOTION TO CONTINUE TRIAL DATE
AND REOPEN DISCOVERY**

This is a matter involving a dispute over real property rights. Before the Court is a motion to continue trial date or adjudication filed by Plaintiffs Kelly Lynn Phillips ("Kelly Lynn") and Richard Phillips ("Richard")("Plaintiffs")¹ against Defendant Sara Rader-Coleman ("Sara.")

Plaintiffs filed a motion to continue the trial date and reopen discovery. In response, Sara filed a consent to continuing the trial date, but requested that the continuance be conditioned upon an order limiting the ability to engage in additional discovery.

On May 5, 2026, the Court continued the trial date to April 6, 2027.

A continuance of trial does not reopen discovery. (Code Civ. Proc., § 2024.020(b).) The Court may permit discovery to be completed, or discovery motions to be heard, after the statutory cutoff only on motion and a showing of good cause. (Code Civ. Proc., § 2024.050, subd. (a).) In deciding whether to reopen discovery, the Court considers the necessity and reasons for the discovery, the moving party's diligence, prejudice, and the time elapsed between trial settings. (Code Civ. Proc., § 2024.050, subd. (b)(1)-(4).)

Plaintiffs move to reopen discovery and primarily seek an opportunity to conduct depositions in this case. The Plaintiffs assert that their new counsel only came into this case in March of 2026 and upon realizing that no depositions had been taken, moved to continue the trial and reopen discovery. (Declaration of Cinthia P. Martin ("Martin Decl.") ¶ 3.)

Plaintiffs filed their Complaint in this case on June 23, 2022. Shortly thereafter, Sara filed her Cross-Complaint on August 10, 2022 and her First Amended Cross-Complaint on August 18, 2022.

On November 11, 2024, Plaintiffs' counsel filed a motion to withdraw and on November 22, 2024, the Plaintiffs notified the Court of their new status as self-represented. According to the declaration of Sara's attorney, John B. Allen ("Allen Decl."), prior to the Plaintiffs' becoming pro se, the parties engaged in substantial discovery, including:

¹ Given the common surnames of the parties, first names are used. No disrespect is intended.